

LEGAL AID FAILURE AND ABUSE OF JUSTICE

COURT FILING EVIDENCE

Case: McGovern Family vs Quebec Government

Parties: James Robert McGovern and Family Members (Plaintiffs) vs Quebec Government Agencies (Defendants)

Date Prepared: April 5, 2026

Evidence Type: Email correspondence with Legal Aid Montreal/Laval and law firm representatives

SECTION 1: LEGAL AID SYSTEM FAILURE

Email Evidence Chain

Participants:

- James Robert McGovern (Self-represented victim)
- Behzad Shakeri (Lawyer, Alain Gagnon Avocats)
- Julie Gagnon (Lead lawyer, Alain Gagnon Avocats)
- Louise Boucher (Legal Aid Montreal/Laval)
- Christie Perpignan (Family support)

Critical Questions from Client

Question 1: Reason for Abandonment

“Could you please send me a letter to the exact reason your office stopped representing me”

Response: NO RESPONSE PROVIDED

Question 2: Access to File

“How can I get my complete physical file that you have for my file as I need it to represent myself”

Response: DELAYED/INCOMPLETE

Question 3: Billing Records

“How can I get a complete list of all the billing that was done to legal aid for my files over the years I was your client?”

Response: NO RESPONSE PROVIDED

SECTION 2: SYSTEMIC LEGAL FAILURE DOCUMENTED IN EMAILS

13+ Years in Court with NO CHILD SUPPORT

Client Statement:

“How can I get the complete file as I will represent myself as it’s really not normal to be in court for more than 13 years and over 500 representing for child support when there was none”

Facts:

- 13+ years in court system
- 500+ court appearances
- ZERO child support collected
- Family remained on welfare entire time
- Legal aid paid for lawyers to attend 500+ appearances
- Result: NOTHING

Billing Discrepancy Analysis

Court Entries vs. Actual Appearances:

- Total court entries: 156 (per Plumulatif Civil)
- Actual court appearances: ~14
- Billing ratio: 11:1 (1,100% overbilling)
- Estimated overbilling: \$102,400+

Question to court: If there were only 14 actual court appearances, why were lawyers billing for 156 entries?

SECTION 3: SYSTEMIC FAILURES ACROSS ALL AGENCIES

IVAC Failure

“IVAC and the minister of justice all refuse to help financially and it’s disgusting to do this to a handicap kid”

Facts:

- Barran stabbed 3 times (February 14, 2021)
- IVAC paid only 13% of eligible compensation
- Owed \$37,792+ (87% underpaid)
- Disabled victim left without support

Political Failure

“Politicians refuse to help. I even get a letter from my Deputy if I ask for help regarding Barran case with DPJ/IVAC they will charge me with criminal harassment”

Facts:

- Threatened with criminal harassment for asking for help
- Politicians refusing assistance

- Victim intimidated into silence

DPJ/Tribunal Failure

“Even the DPJ and their tribunal said it was up to the kids if they wanted to see their mom and they don’t want anything to do with her”

Facts:

- Kids don’t want contact with abusive parent
- DPJ acknowledged this
- Yet case continued for 13+ years
- No resolution despite clear wishes

Housing Crisis

“Hard to find a house for 9 on welfare”

Facts:

- 9 family members on welfare
- 5+ years searching for housing
- No government assistance
- Systemic failure to support vulnerable family

Disabled Child Abandoned

“Barran is 18 and he’s disabled... IVAC and minister of justice all refuse to help”

Facts:

- Barran disabled (stabbed 3 times)
 - Turned 18 (April 2026)
 - Must go to welfare office to apply for assistance
 - No support from government agencies
 - CRARR discrimination case filed
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SECTION 4: MENTAL STRESS AND ABUSE OF JUSTICE

Family Mental Health Impact

“Court is driving our Family insane”

Evidence of Mental Stress:

- 13+ years in court system
- 500+ court appearances
- NO RESOLUTION
- Continuous government harassment
- RCMP wellness checks (4 in 35 days)
- Threats of criminal harassment
- Ongoing trauma from stabbing (2021)
- Ongoing trauma from abuse

Documented Mental Health Issues

- James Robert McGovern: Heart condition, anxiety, PTSD
- Barran McGovern: Disabled (stabbed 3 times), broken foot
- Paisley McGovern: Ongoing therapy needs
- All family members: Trauma from systemic failure

Definition: Abuse of Justice

Abuse of justice occurs when:

1. ✓ Legal system fails vulnerable clients
2. ✓ Lawyers abandon cases without explanation
3. ✓ Billing occurs without corresponding work
4. ✓ Government agencies fail to protect
5. ✓ Courts allow systemic failure to continue
6. ✓ Victims threatened for seeking help

- 7. ✓ Mental stress caused by system failure

All seven elements present in this case.

SECTION 5: LEGAL AID SYSTEM FAILURES

Failure to Protect Vulnerable Populations

Legal aid failed to protect:

- ✓ Young people (Barran, Paisley)
- ✓ Disabled individuals (Barran - stabbed, broken foot)
- ✓ Crime victims (Barran - stabbed 3 times)
- ✓ Indigenous families (McGovern family)
- ✓ People on welfare (entire family)
- ✓ People with mental health issues (anxiety, PTSD)

Failure to Provide Adequate Representation

Legal aid lawyers:

- ✓ Did not explain reason for abandonment
- ✓ Did not provide complete files
- ✓ Did not provide billing records
- ✓ Did not resolve case after 13 years
- ✓ Did not prevent overbilling
- ✓ Did not protect client rights
- ✓ Did not follow proper legal procedures

Failure to Investigate Overbilling

Legal aid system failed to investigate:

- 156 court entries for 14 actual appearances

- Billing for work not performed
 - Billing discrepancies between lawyers
 - Abandonment of clients
 - Lack of follow-up on client requests
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SECTION 6: TIMELINE OF LEGAL AID FAILURE

2013-2023: 10 Years in Court

- Custody proceedings ongoing
- Protective measures continuously renewed
- DPJ involvement documented
- NO RESOLUTION

2023: Lawyer Abandonment

- Legal aid office stopped representing client
- NO EXPLANATION PROVIDED
- Client forced to self-represent
- Billing records not provided

2024: Legal Aid Appointment

- Me Brault appointed to represent Paisley
- Separate law firm (not Gagnon office)
- Continued delays
- No resolution

2025-2026: Self-Representation

- James Robert McGovern self-representing
- Successfully obtained custody judgment (February 10, 2026)

- Proved that case did NOT need lawyers
- Proved that lawyers were unnecessary

April 2026: Current Status

- Filing lawsuit against Quebec Government
 - Demanding investigation of legal aid overbilling
 - Demanding investigation of lawyer abandonment
 - Demanding compensation for mental stress
 - Demanding systemic reform
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SECTION 7: WHY JUDGE NEEDS TO SEE THIS

Evidence of Systemic Failure

This email chain proves that the legal aid system:

1. ✓ Failed to protect vulnerable families
2. ✓ Failed to provide adequate representation
3. ✓ Failed to explain abandonment
4. ✓ Failed to provide billing records
5. ✓ Failed to resolve case after 13 years
6. ✓ Caused mental stress to entire family
7. ✓ Violated professional standards

Evidence of Abuse of Justice

This email chain proves that:

1. ✓ Lawyers abandoned clients without explanation
2. ✓ Billing occurred without corresponding work
3. ✓ Legal aid system failed vulnerable populations

4. ✓ Government agencies failed to protect
5. ✓ Courts allowed systemic failure to continue
6. ✓ Victims threatened for seeking help
7. ✓ Mental stress caused by system failure

Evidence of Whistleblower Protection

This email chain is protected expression because:

1. ✓ Exposes systemic legal aid failure
 2. ✓ Reveals government misconduct
 3. ✓ Documents abuse of vulnerable families
 4. ✓ Shows discrimination against Indigenous families
 5. ✓ Demonstrates failure to follow legal procedures
 6. ✓ Reveals threats and intimidation
 7. ✓ Protected by Charter s.2(b) freedom of expression
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SECTION 8: RECOMMENDATIONS TO COURT

Immediate Actions

1. Investigate legal aid overbilling

- 156 court entries for 14 actual appearances
- Billing for work not performed
- Demand refund of overbilled amounts

2. Investigate lawyer abandonment

- Why legal aid office stopped representing client
- Why no explanation provided
- Why billing records not provided

3. Investigate billing discrepancies

- Who was Behzad Shakeri billing for?
- How much did he bill?
- Who authorized the billing?
- Where did the money go?

4. Award damages for mental stress

- 13+ years in court system
- 500+ court appearances
- NO RESOLUTION
- Mental health impact on entire family
- Anxiety, PTSD, heart condition documented

Long-term Actions

1. Reform legal aid system

- Require explanation for case abandonment
- Require provision of billing records
- Require investigation of overbilling
- Require protection of vulnerable populations

2. Investigate systemic discrimination

- Legal aid failed to protect young people
- Legal aid failed to protect disabled individuals
- Legal aid failed to protect crime victims
- Legal aid failed to protect Indigenous families
- Legal aid failed to protect people on welfare

3. Establish accountability

- Require Law Society investigation
- Require legal aid system audit
- Require government agency accountability

- Require compensation for victims
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SECTION 9: CONCLUSION

The legal aid system failed James Robert McGovern and his family for 13+ years. Lawyers abandoned the case without explanation. Billing occurred for work not performed. Mental stress was caused to the entire family. Government agencies failed to protect vulnerable populations.

This is not an isolated incident. This is a systemic failure of the legal aid system to protect vulnerable families.

The court must:

1. Investigate the legal aid system
 2. Award damages for mental stress
 3. Order refund of overbilled amounts
 4. Establish accountability
 5. Protect future vulnerable families
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SECTION 10: SUPPORTING EVIDENCE

Email Chain

- Complete email correspondence with legal aid lawyers
- All requests for explanation, files, and billing records
- All responses (or lack thereof)
- All evidence of abandonment and overbilling

Plumulatif Civil

- 10-year court history
- 156 court entries

- Only 14 actual court appearances
- Evidence of systemic overbilling

Lawyer Overbilling Documentation

- Analysis of billing discrepancies
- Comparison of court entries to actual work
- Estimated overbilling amount
- Evidence of fraudulent billing practices

Medical Records

- Heart condition (documented)
- Anxiety (documented)
- PTSD (documented)
- Mental stress from systemic failure

This document is submitted as evidence of systemic legal aid failure and abuse of justice.

Prepared by: James Robert McGovern (Self-represented victim)

Date: April 5, 2026

For: Superior Court of Quebec

Case: McGovern Family vs Quebec Government

Damages Claimed: \$75,000,000+ (plus compound interest)